

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Kaitlin Campbell	Team: Squad #14	CCRB Case #: 201607043	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 08/16/2016 12:15 AM	Location of Incident: In front of § 87(2)(b)	18 Mo. SOL 2/16/2018	Precinct: 44
Date/Time CV Reported Tue, 08/16/2016 8:03 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Tue, 08/16/2016 8:03 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Steven Ramunno	11784	930874	044 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Onyx Salvador	22056	959962	044 PCT
2. POF Kathyria Castillo	21358	959540	044 PCT
3. POM Thomas Curley	05664	960414	044 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Steven Ramunno	Abuse: Police Officer Steven Ramunno questioned § 87(2)(b)	A . Substantiated

Case Summary

On August 16, 2016, at approximately 12:15 a.m. § 87(2)(b) was leaning against a green postal relay box and smoking a cigarette in front of his home at § 87(2)(b) in the Bronx when Police Officers Steven Ramunno, Kathyria Castillo, Thomas Curley, and Onyx Salvador of the 44th Precinct pulled up to the curb next to him in a marked van.

Police Officer Steven Ramunno of the 44th Precinct questioned § 87(2)(b) and asked for identification (**Allegation A**). § 87(2)(b) gave PO Ramunno identification and was found to have an open warrant. § 87(2)(b) was arrested and transported to the 44th Precinct stationhouse.

Video evidence was not obtained for this case.

Mediation, Civil and Criminal Histories

- § 87(2)(b) was offered mediation on the phone and in person at the CCRB. He rejected mediation § 87(2)(b).
- A Notice of Claim inquiry was sent electronically to the New York City Comptroller's Office on November 1, 2016 and no records were located.

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first CCRB complaint.
- PO Ramunno has had 23 complaints filed against him with the CCRB, six of which were closed as mediated or mediation attempted. Of the 32 allegations against PO Ramunno that were fully investigated, none were substantiated. PO Ramunno was alleged to have abused his authority by making an improper stop twice—once in 2007 and was exonerated; and once in 2010 in which the complainant was uncooperative and the case was truncated.

Potential Issues

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]

Findings and Recommendations

Explanation of Subject Officer Identification

- § 87(2)(g)
[REDACTED]
[REDACTED]

§ 87(2)(g)

Allegations Not Pleaded

§ 87(2)(g)

Allegation A –Abuse of Authority: Police Officer Steven Ramunno questioned

§ 87(2)(b)

According to § 87(2)(b) he arrived home to § 87(2)(b) at approximately 12:15 a.m. on August 16, 2016 and decided to smoke a cigarette before going inside. He was carrying a backpack on his back, a pool cue case on his shoulder, and a garbage bag filled with laundry along with a plastic bag of take-out food in his hands. § 87(2)(b) walked to the curb in front of his building and stopped next to a green postal relay box—an iron container shaped like a mailbox that is used by postal workers to store packages. § 87(2)(b) put the laundry bag on the ground, the take-out food on top of the postal relay box, and kept the backpack on his back and the cue case on his shoulder. Facing the street, he put one arm against the postal relay box and took out a cigarette with the other. As he lit the cigarette he noticed a marked police van pull to the curb in front of his building about ten feet to his left. § 87(2)(b) was not surprised by this, as there was a shooting in his building four days prior and he had seen many officers in and around the building since. The van double-parked next to a car parked behind the fire hydrant to § 87(2)(b)'s left and two officers—determined to be PO Curley and PO Salvador—exited from the back doors. An officer in the passenger's seat—determined to be PO Castillo—pointed at § 87(2)(b) and said “Hey you, come here?” § 87(2)(b) pointed to himself and said “you mean me?” PO Castillo said yes, and § 87(2)(b) walked over to the van and stood in the street within a foot of PO Castillo's window. There were cars parked on both sides of him. § 87(2)(b) did not see PO Curley or PO Salvador in his periphery and assumed they were behind him but did not see what they were doing. § 87(2)(b) estimated he was in front of his building for about three minutes before PO Castillo spoke to him. There were no other civilians around except for a man sitting inside a red car parked in front of his building.

An officer in the driver's seat—determined to be PO Ramunno—asked § 87(2)(b) what he was doing. § 87(2)(b) told him he was smoking a cigarette before he went home. PO Ramunno asked § 87(2)(b) what he was doing to the mailbox and § 87(2)(b) told him he was not doing anything to the mailbox. PO Ramunno asked § 87(2)(b) if he was doing something to the mailbox using a term he had never heard before. § 87(2)(b) asked PO Ramunno to explain the term and PO Ramunno explained that it referred to “messing with the mail in the mailbox.” § 87(2)(b) told PO Ramunno he was not doing that and he “[did not] do that kind of shit.” PO Ramunno asked § 87(2)(b) what he was doing. § 87(2)(b) told PO Ramunno he was smoking a cigarette and that he lived there. PO Ramunno asked § 87(2)(b) for identification. § 87(2)(b) told PO Ramunno he lost his driver's license but had a temporary license print-out from the Department of Motor Vehicles, and handed it to PO Ramunno. The address on § 87(2)(b)'s temporary license is § 87(2)(b) and the date of birth listed is § 87(2)(b). The document was set to expire on § 87(2)(b) (**Board Review 01**). PO Ramunno looked at § 87(2)(b)'s interim license and § 87(2)(b) told PO Ramunno he also had with him his expired passport that included a picture of him. PO Ramunno asked to see it and § 87(2)(b)

handed him his passport. The date of birth on § 87(2)(b)'s passport is § 87(2)(b). It expired on § 87(2)(b) **(Board Review 02)**. PO Ramunno asked § 87(2)(b) when he was last arrested and § 87(2)(b) told him he did not know. PO Ramunno got out of the van, followed by PO Castillo. PO Ramunno told § 87(2)(b) he had a warrant, and placed him under arrest. While PO Curley and PO Salvador went upstairs to check if there was someone at his apartment who could retrieve his things, PO Ramunno told § 87(2)(b) to put his hands on the van and told PO Castillo to look inside § 87(2)(b)'s bags. PO Ramunno frisked § 87(2)(b) and then handcuffed him and put him in the van. PO Curley and PO Salvador returned to the van and said no one was home. The officers put § 87(2)(b)'s bags in the van, got in, and drove to the 44th Precinct stationhouse.

According to PO Ramunno, at the time and place of occurrence he was driving a marked police van, assigned to a training auto post in which he guided new officers in addressing conditions in the precinct. One of the conditions they were addressing was a practice of mail theft known as “mailbox fishing” in which an individual drops an adhesive into a public mailbox by a string and uses it to extract pieces of mail. PO Ramunno said mailbox fishers can work alone and in pairs, on foot and by car, and they move from mailbox to mailbox carrying big bags to fill with mail. PO Ramunno never arrested anyone caught in the act of mailbox fishing but was present for the arrest of someone who had tools for it. PO Ramunno said he told the new officers what mailbox fishing was but did not tell them specifically how to look for signs it was occurring, which PO Salvador, PO Curley, and PO Castillo corroborated.

PO Ramunno saw a man—determined to be § 87(2)(b) on the opposite side of the six-lane boulevard, leaning against a mailbox. PO Ramunno said he believed he was the first person in the van to spot § 87(2)(b) which all three officers corroborated. PO Ramunno did not see how § 87(2)(b) was leaning on which side of the mailbox or whether § 87(2)(b) was moving any part of his body. PO Salvador and PO Curley said they observed § 87(2)(b) behind the mailbox his hands on top of it while PO Castillo said she observed § 87(2)(b) leaning over the mailbox from behind with his left arm on top of it and his bags on the ground.

PO Ramunno said he made the decision to approach § 87(2)(b) which the other officers corroborated. He told PO Salvador, PO Curley, and PO Castillo they would go talk to him and determine whether he was mailbox fishing. Aside from the fact he was leaning on the mailbox, PO Ramunno did not observe anything about § 87(2)(b) that made him suspicious or lead him to suspect he was mailbox fishing. PO Salvador said that what drew officers' attention to § 87(2)(b) was that he was near a federal mailbox late at night with a backpack and a garbage bag. PO Curley said he observed nothing suspicious about § 87(2)(b) besides him being near a mailbox with a book bag. PO Castillo said the initial reason officers stopped § 87(2)(b) was because he was suspiciously leaning on the mailbox.

PO Ramunno pulled in front of § 87(2)(b). PO Ramunno remembered cars parked in front of the building and said he “probably” double-parked the van. PO Castillo said PO Ramunno double-parked the van while. PO Salvador and PO Curley said PO Ramunno pulled to the curb and parked within ten feet of § 87(2)(b).

PO Ramunno did not remember how § 87(2)(b) was dressed and believed he had a backpack but could not remember if he was wearing it. All three officers said § 87(2)(b) was had with him a backpack, an item determined to be a pool cue case—that PO Castillo described as resembling a poster tube—and a garbage bag found to contain laundry. PO Ramunno did not find anything suspicious about § 87(2)(b)'s belongings. PO Salvador said the garbage bag was clear and that

the laundry could be seen in the bag. PO Curley said § 87(2)(b) was smoking a cigarette when the officers approached.

PO Ramunno did not remember what kind of mailbox § 87(2)(b) was leaning against. PO Curley described the mailbox as one you could open if you had a key or were able to “pry it open” and after additional questioning described it as a typical mailbox into which could be dropped through a pull-down chute. A street view image from Google Maps taken in June 2014 shows that the mailbox is a green postal relay box, without a chute, used for storing large packages (June 2014). On August 25, 2016 the undersigned investigator conducted fieldwork at § 87(2)(b) and confirmed it was a postal relay box (**Board Review 03**).

PO Ramunno did not recall if he or any officer examined the mailbox for signs it was tampered with; however, PO Salvador, PO Curley, and PO Castillo said that while PO Ramunno was questioning § 87(2)(b) PO Salvador and PO Curley examined the mailbox for about a minute. PO Ramunno thought he got out of the van and walked up to § 87(2)(b) which the other officers generally corroborated. PO Ramunno said he told § 87(2)(b) the officers wanted to talk to him because where he was standing raised suspicion that mailbox fishing was going on. PO Ramunno said he did not accuse § 87(2)(b) of mailbox fishing. The other officers said PO Ramunno asked § 87(2)(b) what he was doing in front of the mailbox and if he lived there. PO Ramunno remembered asking § 87(2)(b) for I.D. but did not remember whether § 87(2)(b) gave him I.D. The other officers said § 87(2)(b) first handed PO Ramunno his expired passport that contained a picture of a much younger version of him and then gave him a temporary license print-out from the Department of Motor Vehicles. PO Ramunno did not remember whether § 87(2)(b) was behaving combatively during the interaction. The other officers said § 87(2)(b) was mostly compliant.

It was generally corroborated that PO Ramunno ran a search for § 87(2)(b) on his department-issued smartphone and found a warrant. At this point, § 87(2)(b) was placed under arrest. Everyone but PO Ramunno—who did not remember—corroborated that PO Salvador handcuffed § 87(2)(b) and frisked him before placing him in the van, that PO Curley and PO Salvador went inside § 87(2)(b) to see if there was someone home who could take § 87(2)(b)'s things while PO Castillo searched § 87(2)(b)'s bags. Everyone corroborated that § 87(2)(b) was transported to the 44th Precinct stationhouse.

An officer is permitted to ask a civilian pointed or accusatory questions if the officer has founded suspicion that criminality is afoot, provided that the officers creates an environment in which a reasonable person would feel able to walk away. Innocuous behavior alone will not generate a founded or reasonable suspicion that a crime is at hand. (*People v De Bour* 40 N.Y.2d 210 (1976) (Board Review 04).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **substantiated**.

Squad: 14

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date